13131633
11/22/2019 03:49 PM $57.00
Book - 10864 Pg - 630-639
RASHELLE HOBBS
RECORDER, SALT LAKE COUNTY, UTAH
L # DEVELOPMENT LLC
PO BOX 711820
SLC UT 84171
BY: BRH, DEPUTY - WI 10 P.

When recorded, send notice to:
P.G.L.C., LLC
2025 Mahre Drive
Park City, Utah 84098

Declaration and Notice of Vested Mining Use

Utah Code § 17-41-501 to -503, as amended

THIS DECLARATION AND NOTICE OF VESTED MINING USE (**"Declaration"**) is made as of the date below by the undersigned mine operators (the term "mine operator" includes any natural person, corporation, association, partnership, receiver, trustee, executor, administrator, guardian, fiduciary, agent, or other organization or representative, either public or private, including a successor, assign, subsidiary, related parent company, and predecessor in interest, all of which are collectively referred to herein as **"Declarants"**) of the real property legally described on Exhibit A attached hereto and incorporated herein by this reference (the **"Property"**).

Pursuant to Utah Code § 17-41-501(4), the undersigned Declarants hereby provide notice of a vested mining use on the Property as follows:

A. This Declaration is intended to be a declaration of a vested mining use on the Property in accordance with Utah Code §§ 17-41-501 to -503, as amended.

B. Declarants own or control the Property including, without limitation, the surface and subsurface estates, mineral estates, fee estates, leasehold estates, easement estates, undivided interests, and other mineral interests, rights, and leases comprising the Property, together with all rights, privileges, easements, tenements, hereditaments, rights of way, leases, licenses, and appurtenances that belong or appertain thereto including, without limitation, rights to minerals, water, water rights and water stock, buildings, structures, and other improvements.

C. A mining use, as defined in Utah Code § 17-41-101(16), existed or was conducted or was otherwise engaged in on the Property by Portland Cement Company of Utah, which changed its name to Utah Portland Quarries, Inc. (**"Portland Cement"**), and others, at least as early as the 1890s, before statehood, and well before Salt Lake County restricted or otherwise limited mining use in the area. Evidence of such prior mining operations is readily apparent from a physical inspection of the Property and historic records.

D. Beginning in 1992, and on various dates prior to October 1997, entities owned or controlled by Declarant Sachs acquired the Property with the intent to mine it.

E. Since at least 1993, Declarants have operated as a joint venture regarding the Property. Declarant Harper acquired portions of the Property from Declarant Sachs or entities owned or controlled by Declarant Sachs on various dates. Declarant Sachs and Declarant Harper have entered into multiple agreements since 1993 regarding mining operations on the Property.

F. In 1995, a Notice of Intention to Commence Large Mining Operations with respect to a portion of the Property (the **"Large Mine Permit"**) was filed with the Utah Department of Natural Resources' Division of Oil, Gas and Mining (**"DOGM"**) by Rock and Roll Land Company, Inc., as owner, and Harper Contracting, Inc., as operator. DOGM approved the Large Mine Permit in 1996 and the Large Mine Permit remains active today.

G. The Property has been continuously used or held for use for mining operations.

H. Commercial quantities of mineral deposits have been produced from the Property dating back to the earliest mining activity. In 1994, over 90,000 tons of minerals were mined from the Property. In 2009, over 725,000 tons of minerals were mined from the Property. In 2018, over 500,000 tons of minerals were mined from the Property.

I. Declarants qualify as "mine operators" under Utah Code § 17-41-101(13) because, as of January 1, 2009, Declarants (a) owned, controlled, or managed a mining use under the Large Mine Permit; and (b) had produced and continue to produce commercial quantities of a mineral deposit from the mining use.

J. Pursuant to Utah Code § 17-41-101(15), the Property is a part of the mining protection area and is entitled to all rights, benefits, and protections under Utah Code, Title 17, Chapter 41.

K. Pursuant to Utah Code § 17-41-501(3), the present or future boundary described in the Large Mine Permit does not limit the scope of the Declarants' vested mining rights and does not limit the protection provided under Utah law for a mining protection area.

L. Declarants reserve the right, pursuant to Utah Code § 17-41-502 to expand the vested mining use. Declarants may progress, extend, enlarge, grow, or expand the vested mining use to any surface or subsurface land or mineral estate that the mine operator owns or controls, Utah Code § 17-41-502(1)(a); and Declarant may expand the vested mining use to any new land that (i) is contiguous and related in mineralization to surface or subsurface land or a mineral estate that the mine operator already owns or controls; (ii) contains minerals that are part of the same mineral trend as the minerals that the mine operator already owns or controls; or (iii) is a geologic offshoot to surface or subsurface land or a mineral estate that the mine operator already owns or controls, Utah Code § 17-41-502(1)(b). This Declaration and the description of the Property set forth in Exhibit A are not intended to incorporate all of the real property interests owned or controlled by the Declarants that Declarants have the right to include as part of Declarants' vested mining use. Declarants hereby reserve the right from time to time to: (a) remove all or portions of the Property from this Declaration and/or the mining protection area; (b) incorporate into this Declaration additional real property interests owned or controlled by Declarants; (c) add new land, as defined under Utah Code § 17-41-101(18), and pursuant to Utah Code § 17-41-502, to this Declaration; and/or (d) correct errors in the legal descriptions for the Property. Any such removal, addition, or correction hereunder shall be effective upon recording of an amendment or supplement to this Declaration. Any amendment or supplement to this Declaration to incorporate additional real property interests under subsection (b) of this

paragraph as part of Declarants' vested mining use declared hereunder shall relate back to the date this Declaration is recorded.

M. The vested mining use declared hereunder shall run with and bind the land within the Property as provided by Utah Code § 17-41-501(2), subject only to express abandonment by written declaration according to Utah Code § 17-41-503.

N. This Declaration may be signed in counterparts. Declarants have reviewed and understand this Declaration and the underlying facts and agree that, to the best of their knowledge, the Declaration is correct.

Dated this 19 day of NOVEMBER, 2019.

[signatures on following page]

DECLARANTS

P.G.L.C., LLC

By: Ira N. Sachs
Its: Manager

R.R.L.C., LLC

By: Ira N. Sachs
Its: Manager

Rock & Roll Land Company, Inc.

By: Ira N. Sachs
Its: President

Pharaohs Glen Land Company, Inc.

By: Ira N. Sachs
Its: President

Parley's Canyon Aggregate Company

By: Ira N. Sachs
Its: President

Ira Sachs

An individual

Harper Contracting, Inc.

By:
Its:

Rulon Harper Construction, Inc.

By:
Its:

Rulon J. Harper

An individual

Old Spanish Claim, L.C.

By: Ira N. Sachs
Its: Manager

Old Spanish Claim, L.L.C.

By: Ira N. Sachs
Its: Manager

Old Spanish Claim, LLC

By: Ira N. Sachs
Its: Manager

STATE OF ~~UTAH~~ FLORIDA)
: ss.
COUNTY OF PALM BEACH)

On the 19 day of NOVEMBER 2019, Ira Sachs appeared before me who duly acknowledged and executed the above instrument in the capacity so stated.

(seal) ANYA V. HARRIS NOTARY PUBLIC STATE OF FLORIDA My Comm. Expires January 10, 2020 No. GG 949249

Notary Public

STATE OF UTAH)
: ss.
COUNTY OF Utah)

On the 22 day of November 2019, Rulon J. Harper appeared before me who duly acknowledged and executed the above instrument in the capacity so stated.

(seal) JASON MADSEN Notary Public • State of Utah Commission # 694540 My Commission Expires April 25, 2021

Notary Public

EXHIBIT A
to Declaration of Vested Mining Use

EXHIBIT A

The "Property" referred to in the foregoing instrument is located in Salt Lake County, Utah, and is more particularly described as follows:

Parcel A:
THE SHALE AND LIMESTONE PLACER MINING CLAIM, a patented property, designated as Mineral Survey No. 5031 covering all or portions of the following described lands:

The East Half of the Southeast Quarter of Northeast Quarter (E½SE¼NE¼); Southwest Quarter of Southeast Quarter of Northeast Quarter (SW¼SE¼NE¼); Southeast Quarter of Southwest Quarter of Northeast Quarter (SE¼SW¼NE¼); West Half of East Half of Northwest Quarter of Southeast Quarter (W½E½NW¼SE¼); East Half of West Half of Northwest Quarter of Southeast Quarter (E½W½NW¼SE¼); Northwest Quarter of Southwest Quarter of Southeast Quarter (NW¼SW ¼SE¼); Northeast Quarter of Southeast Quarter of Southwest Quarter (NE¼SE¼SW¼); South Half of Southeast Quarter of Southwest Quarter (S½SE¼SW¼); ALL in and of Section 24, Township 1 South, Range 1 East, Salt Lake Base and Meridian, Situate in the Hot Springs Mining District, Salt Lake County, Utah.

Parcel B:
The patented placer mining claim and premises known as the COMPROMISE PLACER MINING CLAIM and covering the lands described as Lots numbered 4, 14, 15, 16, 17 and 18 in Section 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian; and also Lots numbered 1, 2, and 3 in Section 24, Township 1 South, Range 1 East, Salt Lake Base and Meridian, all situated in the Hot Springs Mining District, Salt Lake County, Utah.

Parcel C:
The patented placer mining claim and premises known as the UNION LIMESTONE QUARRY PLACER MINING CLAIM, Mineral Survey No. 5710, and covering the following described lands: West Half of the Southwest Quarter of the Southeast Quarter (W½SW¼SE¼); Northeast Quarter of the Southwest Quarter of the Southeast Quarter (NE¼SW¼SE¼); Northwest Quarter of the Southeast Quarter (NW ¼SE¼); and a portion of the East Half of the Southeast Quarter of the Southwest Quarter (E½SE¼SW¼), beginning at the South Quarter corner of Sec. 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian, thence North 89°51'00" West 39.8 feet, thence North 57°26'00" West 735.8 feet, thence North 924.1 feet, thence South 89°58' East 660 feet, thence South 1320 feet to the point of beginning; all situated in Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian, the Hot Springs Mining District, Salt Lake County, State of Utah.

Parcel D:
The patented placer mining claims known as the PORTLAND CEMENT NO. 1, and the PORTLAND CEMENT NO. 2, Survey No. 4269, situated in the Hot Springs Mining District, Salt Lake County, State of Utah, in Sections 18 and 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel E:
The Northeast Quarter of the Southeast Quarter (NE¼SE¼) of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel F:
All of Lots 2 and 6, Section 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel G:
The Southwest Quarter of the Northeast Quarter; the Northwest Quarter of the Southeast Quarter of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian, also that portion of said Section 17, contained in the East half of the Northeast Quarter of said Section, lying West and North of the Right-of-Way owned by the Utah State Road Commission.

Parcel H:
The Southeast Quarter of the Southeast Quarter of Section 8, and the West half of the Southwest Quarter and the Southeast Quarter of the Southwest Quarter of Section 9, Township 1 South, Range 2 East, Salt Lake Base and Meridian. Excepting therefrom that portion of said premises heretofore conveyed by deed executed by Hans Anderson and wife to George A. Olmstead and wife, dated November 8, 1899 and recorded in Book 5Q of Deeds at Page 335, of official records of Salt Lake County, Utah.

Parcel I:
Beginning at the Southwest corner of Section 9, Township 1 South, Range 2 East, Salt Lake Base and Meridian; thence South 89 degrees a 38 minutes West 200.5 feet; thence North 31 degrees 25 minutes 01 seconds East 2 feet; thence North 60 degrees 54 minutes East 268.45 feet; thence South 83 degrees 31 minutes East 240.35 feet; thence North 72 degrees 59 minutes East 110.95 feet; thence North 55 degrees 37 minutes 32 seconds East 145 feet more or less; thence South 218 feet more or less; thence West 500 feet more or less to the point of beginning.

Parcel J:
The Southeast Quarter of the Southwest Quarter of the Southeast Quarter (SE¼SW¼SE¼) of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel K:
The Northeast Quarter of the Southeast Quarter of Section 8, Township 1 South, Range 2 East Salt Lake Base and Meridian.

Parcel L:
The Southwest Quarter of the Southeast Quarter of Section 8, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel M:
The Northwest Quarter of the Northeast Quarter of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel N:
Lot 5 of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel O:
The West half of the Southwest quarter of Section 16, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel P:
The South half of the Southeast quarter and the Northeast quarter of the Southeast quarter of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Lone Pine Claim and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No. 3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

Parcel Q:
Lots 1, 2, 7, 8, 9, and 10, Section 20, Township 1 South, Range 2 East, Salt Lake Base and Meridian, said Lots 1, 8 and 9 extending into and being also part of the West one-half of Section 21, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Last Chance Amended Claim, the Last Chance No. 2 Amended Claim and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No.3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

Parcel R:
Lots 3, 4, 5, 6, 11, and 12, Section 21, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Last Chance Amended Claim, the Last Chance No. 2 Amended Claim, and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No. 3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

LESS AND EXCEPTING any portion of the foregoing premises heretofore conveyed by deed to Shaun Nacey and Marla Nacey dated January 8, 2016 and recorded in Book 10394 at Page 2276 to 2278, of official records of Salt Lake County, Utah and more particularly described as follows: The West 1/2 of the Southwest Quarter of Section 9, Township 1 South, Range 2 East, Salt Lake Meridian. Less and excepting a portion described as beginning South 67°29'33" West 1138.59 feet from the Southwest corner of Section 9, Township 1 South, Range 2 East, Salt Lake Meridian, and running thence West 135 feet; thence North 650 feet; thence North 42°36'44" East 920 feet; thence North 72°51'52" East 1320 feet; thence South 00°00'00" East 650 feet; thence South 77°29'36" West 770 feet; thence South 47°58'00" West 1343 feet to beginning. Less and excepting any portion lying within the right of way for the Denver & Rio Grande Railroad.

FURTHER EXCEPTING AND EXCLUDING any portion of the foregoing premises lying within the bounds of Wasatch Boulevard.

FURTHER EXCEPTING AND EXCLUDING any portion of the foregoing premises heretofore conveyed to or condemned by the State Road Commission of Utah for a freeway project known as I-80 and all appurtenant parts thereof as disclosed by various instruments of record.

The following is included for informational purposes only:
Salt Lake County Parcel Nos.
16-24-300-004
16-24-300-005
17-08-400-002
17-08-400-003
17-08-400-006
17-08-400-007
17-08-476-001
17-09-300-004
17-09-300-007
17-16-300-001
17-17-200-003
17-17-400-002
17-17-400-004
17-18-300-006
17-18-300-011
17-18-300-012
17-18-400-007
17-18-400-009
17-18-400-010
17-18-400-011
17-19-100-007
17-19-100-008
17-19-100-009
17-19-200-002
17-20-200-003
17-21-100-001